

## SCHEDULE (B.)—PART 13.

## REVENUE DEPARTMENTS, &amp;c.

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PART 13.  
Revenue  
Departments,  
&c.

SCHEDULE of SUMS granted, and of the sums which may be applied as appropriations in aid in addition thereto, to defray the charges of the several REVENUE DEPARTMENTS, &c. herein particularly mentioned, which will come in course of payment during the year ending on the 31st day of March 1905; viz. :—

| No.                                                                                                                                                                                         | Sums not exceeding  |                        |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------|------------------------|
|                                                                                                                                                                                             | Supply Grants.      | Appropriations in Aid. |
|                                                                                                                                                                                             | £                   | £                      |
| 1. For salaries and expenses of the Customs Department                                                                                                                                      | 919,000             | 50,550                 |
| 2. For salaries and expenses of the Inland Revenue Department                                                                                                                               | 2,185,100           | 17,000                 |
| 3. For salaries and expenses of the Post Office services, the expenses of Post Office savings banks, and Government annuities and insurances, and the collection of the Post Office revenue | 10,200,618          | 179,800                |
| 4. For the expenses of the Post Office packet service                                                                                                                                       | 786,420             | 201,075                |
| 5. For salaries and working expenses of the Post Office telegraph service                                                                                                                   | 4,715,509           | 65,200                 |
| <b>TOTAL REVENUE DEPARTMENTS</b>                                                                                                                                                            | <b>£ 18,806,647</b> | <b>513,625</b>         |

## CHAPTER 18.

An Act to make provision for the case of default on the part of Local Authorities in the performance of their duties as respects elementary schools.

[15th August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The Board of Education, without prejudice to their right to take any other proceedings, may, if they are satisfied that it is expedient to do so on account of any default of a local authority in the performance of their duties as respects any elementary school,—

Powers of Board of Education on default of local education authority.

(a) make orders for recognising as managers of that school any persons who are acting as managers thereof, and for rendering valid any act, thing, payment or grant which in the opinion of the Board might otherwise be invalid

by reason of the default of the authority, and every such order shall have effect accordingly; and

- (b) if it appears to the Board that the managers of that school have, for the purpose of maintaining and keeping efficient the school, incurred any expenses for which provision should have been made by the local education authority, pay to the managers such amount in respect of these expenses as in the opinion of the Board was properly incurred.

(2) Any sums paid by the Board of Education under this Act shall be a debt due to the Crown from the local education authority and, without prejudice to any other remedy, may be deducted from any sums payable to that authority on account of parliamentary grants.

(3) Any order or payment may be made under this Act as respects matters occurring whether before or after the passing thereof.

Construction  
and short title.  
2 Edw. 7. c. 42.

2. This Act shall be construed as one with the Education Act, 1902, and may be cited as the Education (Local Authority Default) Act, 1904.

## CHAPTER 19.

An Act to amend the Law relating to Private Sidings on Railways. [15th August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Short title.

1. This Act may be cited as the Railways (Private Sidings) Act, 1904.

Facilities with  
respect to pri-  
vate sidings.  
17 & 18 Vict.  
c. 31.

2. The reasonable facilities which every railway company is required to afford under section two of the Railway and Canal Traffic Act, 1854, as amended or explained by any other Act, shall include reasonable facilities for the junction of private sidings or private branch railways with any railway belonging to or worked by any such company, and reasonable facilities for receiving, forwarding and delivering traffic upon and from those sidings or private branch railways.

Provisions as  
to order under  
the Act.

3. The Railway and Canal Commissioners may at any time review and rescind or vary any order made by them under this Act on the application of any party to the order, but, before such an application is entertained by the Commissioners, the applicant shall show to the Commissioners, in manner provided by rules to be made for the purpose under section twenty of the Railway and Canal Traffic Act, 1888, that there is a *prima facie* case for the application.

51 & 52 Vict.  
c. 25.